

1.

CASE #	CASE NAME	HEARING NAME
CVPS2405016	THE PEOPLE OF THE STATE OF CALIFORNIA EX REL JOSE DELGADO vs BAGDASARIAN SERVICES, LLC	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET TWO

Tentative Ruling:

The July 23, 2026, hearing was continued and the parties were ordered to file an amended joint statement identifying which requests for production of documents are at issue by connecting their disputes to discrete discovery requests. The amended joint statement was to be filed at least ten days before the August 20, 2026, hearing date. The parties were also ordered to meet and confer regarding the issues Zenith contends BSL raised for the first time in the joint separate statement submitted for the 7/23/26 hearing. To date, no joint statement has been filed. Consequently, the Court sets the following hearings for **September 29, 2026, at 8:30 a.m.:**

1. Order to Show Cause re Sanctions

Third-Party Plaintiff's Bagdasarian Services, LLC's counsel Katherine A. Bowles and Cross-Defendant Zenith Insurance Company's counsel Carl Basile are ordered to appear telephonically on September 29, 2026, at 8:30 am in Department 10 of the Riverside Historic Courthouse to show cause why the court should not impose sanctions as follows.

Code of Civil Procedure section 177.5 provides as follows:

A judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification. This power shall not apply to advocacy of counsel before the court. For the purposes of this section, the term "person" includes a witness, a party, a party's attorney, or both.

Sanctions pursuant to this section shall not be imposed except on notice contained in a party's moving or responding papers; or on the court's own motion, after notice and opportunity to be heard. An order imposing sanctions shall be in writing and shall recite in detail the conduct or circumstances justifying the order.

Sanctions are contemplated for the following reason:

FAILURE TO COMPLY WITH A COURT ORDER

The Court issues an order to show cause to Plaintiff's/Defendant's counsel as to why sanctions as described in Section 177.5 of the Code of Civil Procedure should not be imposed for failure, without good cause, to comply the Court's Order of July 23, 2026, requiring the parties to file, at least ten days in advance of the August 20, 2026, hearing date an amended Joint Statement that identifies which RFPs are at issue by connecting disputes to discrete discovery requests.

Please review Riverside Superior Court Local Rule 3116 for details and requirements regarding the OSC hearings.

2. Order to Show Cause Why the Court Should Not Appoint a Discovery Referee

The Court has held multiple hearings on discovery disputes as well as multiple informal discovery conferences, yet significant disputes remain. The parties shall meet and confer about the appointment of a discovery referee. If either party is not in agreement that a discovery referee be appointed, that party shall file and serve a timely declaration pursuant to Local Rule 3116.

3. Continued Hearing on Defendant/Third-Party Plaintiff Bagdasarian Services, LLC's Motion to Compel Further Responses to Requests For Production, Set Two, Production of Documents and Privilege Log From Third-Party Defendant Zenith Insurance Company; Request for Monetary Sanctions

The Court's July 23, 2026, Order remains in full force and effect. The parties shall file an amended Joint Statement that identifies which RFPs are at issue by connecting their disputes to discrete discovery requests. The amended joint statement shall be filed at least ten days in advance of the continued hearing. Additionally, the Parties shall meet and confer about the issues Zenith contends BSL raised for the first time in the prior joint separate statement.

For all the above hearings, the parties shall file timely declarations. The Court may exercise its discretion to disregard any late-filed submission.